

Q: Can online platforms be required to conduct random checks on self-declarations made by hosts, including cases where hosts fail to declare their units as short-term rentals?

A: Yes, within certain limits.

Article 7(1)(c) of the Short-Term Rental (STR) Regulation requires online platforms to carry out random checks on:

- hosts' self-declarations concerning the existence or not of a registration procedure;
- the validity (including the correct use) of the registration number provided.

Article 3 of the STR Regulation defines short-term accommodation rental services objectively, irrespective of how hosts label or declare them. Therefore random checks may also cover situations where a host has failed to declare a unit as a short-term rental, insofar as such a situation can be identified through the platform's random checks. However, this obligation must be interpreted in light of the purpose and practical operation of the Regulation. In particular, platforms can only be expected to perform such checks where they have the means to identify, through a machine-readable online database or online interface, potentially incorrect declarations.

Accordingly, this is only feasible where Member States make available the relevant instruments enabling platforms to carry out such checks, such as lists or data allowing them to identify unlawful listings (for instance the lists of hotels). Such instruments may be made available through the Single Digital Entry Point (SDEP).

That said, the obligation to conduct random checks does not extend to all information that may otherwise be available to platforms but only be required for the purposes set out in Article 7, namely to detect incorrect declarations and the misuse or invalidity of registration numbers.

Q: Is it permissible for online platforms to be required to design their interface to include additional elements that would facilitate these random checks?

A: No.

The STR Regulation does not provide a legal basis for requiring online platforms to design their interface in a particular way in order to facilitate random checks. Article 7 merely requires platforms to carry out random checks on declarations concerning:

- the existence or absence of a registration procedure; and
- the misuse or invalidity of a registration number.

It does not require platforms to collect, verify or display additional information beyond what the Regulation provides. Imposing such requirements would go beyond the scope of the STR Regulation.

Therefore, even if random checks may in practice extend to information provided by a host in relation to a unit that may be falsely presented, for example, as a hotel, this does not mean that platforms may be required to redesign their interface or collect additional categories of information not foreseen by the Regulation.

Q: Can Article 8 of the STR Regulation be used to require online platforms to ex ante check whether a listing that has not "self-declared" as an STR unit should in fact have done so?

A: No.

Article 8 of the STR Regulation, entitled "Other obligations", cannot be used as a basis for requiring online platforms to carry out ex ante checks as to whether a listing that has not been self-declared as a short-term rental unit should nevertheless have been declared as such.

More generally, Article 8 does not impose a general monitoring obligation on platforms.

Q: Can online platforms be required to incorporate in their interface drop down menus of registered establishment (short-term rental units, hotels, aparthotels etc) among which hosts are obliged to choose for listing their unit?

A: No.

Online platforms cannot be required to incorporate in their interface a drop-down menu containing a closed list of establishments (STR, hotel, aparthotel etc) among which the host is obliged to choose for listing their unit on an STR Platform.

Such an obligation would go beyond the requirements laid down in the Regulation.

Q: Can Member States use web-scraping tools to detect illegal accommodation listings on online platforms?

A: Yes.

Member States may use web-scraping tools to detect potentially illegal accommodation listings on online platforms. However, they may not, on that basis, impose additional obligations on providers of online platforms beyond those provided for in the applicable EU legal framework.

Q: Can Member States, in the framework of the STR Regulation, require online platforms to transmit data beyond that envisaged in the Regulation itself, such as data relating to all other accommodation listings made available on their platforms?

A: No.

Under the STR Regulation, Member States may not require online platforms to transmit data beyond that expressly provided for in the Regulation, including data concerning other accommodation listings available on their platforms.

The data transmission obligations under the STR Regulation are limited to the short-term rental units and the data referred to in Article 9(1).

That said, competent national authorities may, on the basis of Article 10 of the Digital Services Act, issue orders requiring platforms to provide specific information concerning one or more specific recipients of the service. In that context, Article 6 of the STR Regulation may constitute the legal basis required under Article 10(2)(a)(i) of the DSA.